

COMMISSION REGULATION (EU) No 691/2013

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COMMISSION REGULATION (EU) No 691/2013

of 19 July 2013

amending Regulation (EC) No 152/2009 as regards methods of sampling and analysis

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 882/2004 of the European Parliament and of the Council of 29 April 2004 on official controls performed to ensure the verification of compliance with feed and food law, animal health and animal welfare rules (1), and in particular Article 11(4) thereof,

Whereas:

(1)

Commission Regulation (EC) No 152/2009 of 27 January 2009 laying down the methods of sampling and analysis for the official control of feed (2) acknowledged the need to update the provisions concerning sampling to take into account the recent developments in the way feed are produced, stored, transported and marketed.

(2)

The sampling for the official control of pesticide residues in and on feed of plant and animal origin has to be performed in accordance with Commission Directive 2002/63/EC of 11 July 2002 establishing Community methods of sampling for the official control of pesticide residues in and on products of plant and animal origin and repealing Directive 79/700/EEC (3). The sampling requirements provided for in Directive 2002/63/EC are minimum requirements and the sampling requirements provided for in this Regulation are in general at least equal to or stricter than these minimum requirements with the exception of the size of the final sample for certain commodities. With the inclusion of the provisions as regards the size of the final sample for the control of pesticide residues, the methods of sampling provided in this Regulation can also be applied for the control of pesticide residues.

(3)

Commission Regulation (EU) No 619/2011 (4) lays down the methods of sampling and analysis for the official control of feed as regards presence of genetically modified material for which an authorisation procedure is pending or the authorisation of which has expired. For sampling, Regulation (EU) No 619/2011 makes reference to the provisions of Regulation (EC) No 152/2009 whereby it establishes specific provisions as regards the size of sample. The amendments introduced by this Regulation include specific provisions as regards the size of samples; therefore the methods of sampling provided for by Regulation (EC) No 152/2009 as amended by this Regulation should also be applied to the control of compliance with Regulation (EU) No 619/2011.

(4)

A period of time is needed to put the new method of sampling in place.

(5)

Regulation (EC) No 152/2009 should therefore be amended accordingly.

(6)

The measures provided for in this Regulation are in accordance with the opinion of the Standing Committee on the Food Chain and Animal Health and neither the European Parliament nor the Council has opposed them,

HAS ADOPTED THIS REGULATION:

Article 1

Regulation (EC) No 152/2009 is amended as follows:

(1)

Article 1 is replaced by the following:

‘Article 1

Sampling for the official control of feed, in particular as regards the determination of constituents, including material which contains or consists of or is produced from genetically modified organisms (GMOs), feed additives as defined by Regulation (EC) No 1831/2003 of the European Parliament and of the Council (5), undesirable substances as defined by Directive 2002/32/EC of the European Parliament and of the Council (6) shall be carried out in accordance with the methods set out in Annex I.

The method of sampling set out in Annex I is applicable for the control of feed as regards the determination of pesticide residues as defined in Regulation (EC) No 396/2005 of the European Parliament and of the Council (7) and control of compliance with Regulation (EU) No 619/2011.

(2)

Annex I is replaced by the text set out in Annex I to this Regulation;

(3)

Annex II is replaced by the text set out in Annex II to this Regulation.

Article 2

This Regulation shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

It shall apply from 1 January 2014.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 19 July 2013.